



FINAL NOTICE: Criminal Referral (SAPS/NPA) & Immediate Regulatory Inquiry – Wilbur William Matthee

1 message

Wilbur William Matthee <info@ethichawks.co.za> Tue, 23 Dec 2025 at 18:32

To: lebohang.mpumlwana@afrocentrichealth.com

Cc: ferfam.bruno@gmail.com, Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>

Bcc: wilburmat@gmail.com

To: Ms. Lebohang Mpumlwana (Company Secretary – for the attention of The Board of Directors)

Cc: Mr. Bruno Fernandes (Lead Independent Director); Mr. Monwabisi Kula (Chief Risk Officer)

Dear Members of the Board,

This correspondence serves as my final communication prior to the formalization of criminal proceedings. I am a man of my word. If no resolution is reached by **12:00 PM tomorrow, 24 December 2025**, I will proceed directly to the **South African Police Service (SAPS)** to finalize the criminal docket for **NPA prosecution**.

The Board is hereby reminded of the specific violations documented in the **325-page Evidence Bundle** currently in your possession:

I. CRIMINAL LIABILITY

- **Medical Schemes Act (Section 66):** Criminal maladministration and the knowing suppression of the **Gexus/DMS system integration error**. This carries a penalty of up to **five years imprisonment**.
- **Occupational Health and Safety Act (Section 26 & 8):** Criminal victimization of a whistleblower and the failure to provide a safe psychosocial environment, leading to physical and mental injury. Penalty: **R100,000 fine or two years imprisonment**.
- **B-BBEE Act:** Misrepresentation of inclusive governance ("Governance Fronting") in compliance reports is a **criminal offense** under Regulation 2.10.

II. REGULATORY & FINANCIAL EXPOSURE

- **JSE Rule 3.285.4 (Market Regulation):** Reckless conduct and the improper de-escalation of a Protected Disclosure. Potential fine: **R7.5 million per contravention** and risk of delisting.
- **Employment Equity Act (Section 6 & 60):** Identity discrimination ("Wilma" incident) and failure of reasonable accommodation. Fines: **R500,000 or 10% of turnover**.
- **Basic Conditions of Employment Act (Section 34):** Unlawful deduction of **over 40% of salary**. Penalty: **200% of the amount due** plus interest.
- **Labour Relations Act (Section 187(1)(h)):** Automatically Unfair Constructive Dismissal. Mandatory compensation: **24 months' remuneration**.

THE HUMANITARIAN CRISIS

As a direct result of these violations, I am currently **destitute**, and facing **imminent eviction**. The Board's silence while the operational line filed a **malicious, retaliatory affidavit (10 December 2025)** is now a primary exhibit in my filings with the **JSE** and **FSCA**, both of which have already acknowledged receipt of my dossier.

MY FINAL WORD:

I am requesting:

1. **Immediate Hardship Payment:** To be cleared into my account by **12:00 PM tomorrow** to prevent my homelessness.
2. **Written Settlement Offer.**

If the deadline of **12:00 PM strictly** passes without a confirmed hardship payment, the SAPS CAS number will be generated and immediately forwarded to the JSE, FSCA, CMS, and the National Prosecuting Authority.

I will not communicate further until the deadline has passed.

Sincerely,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)